

25STCV02190 25STCV02190

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-15

Motion: DEFENDANT, ARLINGTON II LLC'S MOTION FOR TERMINATING SANCTIONS AGAINST PLAINTIFF

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Case Number: 25STCV02190 Hearing Date: September 15, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

MARGARET IVY ROSE MATHEWS,

Plaintiff,

vs.

ELSA SMITH; JASON ALBERTO SIMS
ARLINGTON II LLC and DOES 1 through 20, Inclusive.

Defendants.

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CASE NO: 25STCV02190

[TENTATIVE] ORDER RE: DEFENDANT,
ARLINGTON II LLC'S MOTION FOR TERMINATING SANCTIONS AGAINST PLAINTIFF

Dept. 731

September 15, 2026

8:30 a.m.

Matter No. 16

Moving Party: Defendant, Arlington II LLC

Opposing Party: Plaintiff, Margaret Ivy Rose Mathews

Notice: OK

Court Order

Now before the Court is Defendant

Arlington II LLC's opposed motion for terminating sanctions based on
Plaintiff's purported failure to provide responses to Set One discovery served
on Plaintiff on May 27, 2025, with the Court ordering initial responses to that
discovery on April 7, 2026, and with Plaintiff failing to do so prior to
Arlington filing its motion on August 18, 2026.

After review, for at least two reasons, the Court finds insufficient grounds for relief.

First, in imposing sanctions, California courts should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should attempt to tailor the sanction to the harm caused by the withheld discovery. (Padron v. Watchtower Bible & Tract Society of New York, Inc. (2017) 16 Cal.App.5th 1246, 1259-1260.) Critically, the trial court cannot impose sanctions for misuse of the discovery process as a punishment, where the discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. (Ibid.) If a lesser sanction fails to curb misuse, a greater sanction is warranted, with continuing misuses of the discovery process warranting incrementally harsher sanctions until the sanction is reached that will curb the abuse. (Ibid.)

Here, even assuming that a continued discovery abuse was before the Court (further discussed below), the Court has not imposed evidence or issue sanctions in relation to Set One discovery served on Plaintiff, for which reason imposition of terminating sanctions would fail to adhere to the incremental approach set in Padron.

Second, Plaintiff has filed an opposition to Arlington's motion, which argues that on August 24, 2026—15 months late—Plaintiff served responses to Set One discovery (Opposition, Bral Decl., ¶ 4, Ex. 1), which is not disputed in a reply by Arlington, and which mitigates but in no way eliminates the discovery abuse here.

Defendant Arlington II LLC's motion for termination sanctions is accordingly DENIED without prejudice as to Arlington's ability to seek intermediary sanctions such as evidence and issue sanctions and without prejudice to Arlington's ability to seek terminating sanctions in the future based on additional discovery abuses.

Defendant Arlington II LLC is ordered to give notice.

Parties who intend to submit

on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 15, 2026 _____

MARK C. KIM

Judge of the
Superior Court